



The British Patent System During the Industrial Revolution 1700–1852

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Yet four critical comments can be made. First, the topics covered in the book are too wide. The reader is implicitly invited to 'select' the chapters he/she wants to read rather than engaging in the reading of all contributions. Second, the variety of topics included in each part makes it difficult to see what the 'red threads' in each part of the book are. At times, it is difficult to see how the contributions were grouped together. Arguably, the editors could have included a longer introduction in order to explain better the content of each part of the book. Third, the subject and style of each chapter are different especially because the authors of each chapter have many backgrounds and expertise (academics, practitioners, officials). This does not make the assortment of essays very easy to follow, especially if the reader looks at the book for some specific purposes (academic reading, legal explanations or referencing sources). Fourth, given the fast developments in the field, the book risks being outdated very soon. Some chapters were completed in 2013 before major developments in sovereign debt management: the German Constitutional Court case on the Outright Monetary Transactions in February 2014, the US Supreme Court decision on the *NML v Argentina* case in June 2014, or the possible launching of a euro area sovereign bond purchase programme by the European Central Bank in the course of 2015.

Nonetheless, the collection of essays, in honour of the leading practitioner in the field, may prove useful for a number of reasons. First, the study provides some fresh thinking on sovereign debt management and the way in which it could be reformed in the future. Second, as the editors recognise, the book combines a variety of comprehensive contributions that make it possible to have varied perspectives on sovereign debt management. Third, the collection is a useful guide for lawyers and other relevant readers seeking to discover what the current challenges and possible grounds for reforms on sovereign debt management might be. To conclude, although some choices can be criticised, the book is a good collection of essays for those interested in issues regarding sovereign debt management, a yet-undiscovered area of the law.

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***The British Patent System During the Industrial Revolution 1700–1852*, by Sean Bottomley, Cambridge, Cambridge University Press, 2014, 336 pp, £75 (hbk), ISBN 978-1-107-05829-3**

Like practically everyone else writing about the history of the British patent law, Bottomley's book begins with a reference to Charles Dickens' story titled 'A Poor Man's Tale of a

Patent'¹ (33, 35, 72–73). However, this carefully researched study goes beyond the commonplace to launch a thorough re-examination of the history of the British patent system.

It does so by providing new impulses for the theoretical reflection on the role of patents to British industrialisation during the eighteenth and nineteenth centuries. Its reading of Dutton's and MacLeod's previous investigations offers particularly interesting angles to refine and challenge some of their conclusions (20–26).² Although some of these perspectives were possible only after new historical evidence became available (114–15), the book embraces, explores and masterfully delivers nuanced ways of reading recent historical sources such as *Hayward's Patent Cases* (81–82), the online *Times* catalogue and Lord Mansfield's court notebooks (82). For that reason, the book could also be read as a *festschrift* to Hayward's work. For the work of Peter Hayward (1932–2014), editor of the *Patent Cases* (1600–1883),³ was undoubtedly one of its conditions of possibility.⁴

Although there is certainly a debt to previous works, Bottomley's sharp eye follows a sort of 'archival reasoning', finding his way through primary sources and developing his own arguments by focusing on the detail.⁵ He does so in order to illustrate how patents became established on a stable and 'modern' legal footing (103, 171). Of the factors highlighted and reflected upon, the book is at its best explaining the conceptual and infrastructural shift from petition to specification (75–79), elucidating the rise of the patent agency (65–74), reassessing the role of the Privy Council and the Courts of Chancery and Exchequer (105–26) and exploring the substantive development of patent law (143–69).

The book is divided into two sections, the first re-examining the history of the British patent system in four chapters, and the second, also in four chapters, dealing with the link between patents and technology. Central to the argument in both parts

1 Charles Dickens, 'A Poor Man's Tale of a Patent' in *Household Words* (19 October 1850). Some examples include Jeremy Phillips, *Charles Dickens and the 'Poor Man's Tale of a Patent'* (ESC Publishing 1984); Megan Richardson and Julian Thomas, *Fashioning Intellectual Property Exhibition, Advertising and the Press, 1789–1918* (Cambridge University Press 2012) 71; Clifford Lees, *Patent Protection: The Inventor and His Patent* (Business Publications Limited 1965) 17; John Hewish, *Rooms Near Chancery Lane: The Patent Office under the Commissioners 1852–1883* (The British Library 2002) 14; Claire Pettitt, *Patent Inventions: Intellectual Property and the Victorian Novel* (Oxford University Press 2004) 82, 129, 139, 185, 192; Harold I Dutton, *The Patent System and Inventive Activity during the Industrial Revolution, 1750–1852* (Manchester University Press 1984) 51; Christine MacLeod, *Heroes of Invention: Technology, Liberalism and British Identity 1750–1914* (Cambridge University Press 2007) 184–86.

2 Christine MacLeod, *Inventing the Industrial Revolution: The English Patent System, 1660–1800* (Cambridge University Press 1988) and Dutton (n 1).

3 *Hayward's Patent Cases 1600–1883* (Professional Books Limited 1987). In the preface, Hayward already anticipated that his contribution was going to be important to 'provide historians of technology and of economic development with a unique set of source material for the important range of years covered, extending as they do over the Industrial Revolution and the major part of the Victorian industrial expansion'.

4 Sean Bottomley, *The British Patent System during the Industrial Revolution 1700–1852* (Cambridge University Press 2014) ix–xi.

5 See also S Bottomley, 'Patent Cases in the Court of Chancery, 1714–58' (2014) 35 *The Journal of Legal History* 27.

is the possibility that the patent system could have historically ‘encouraged the development and diffusion of technology during the Industrial revolution’ (28, 174).

While Chapter 1 shows a careful reading of the historiography of the patent system (20–26), Chapter 2 places the petition procedure at the heart of the system before the Patent Law Amendment Act in 1852 (35–42). In so doing, the book shows how the study of bureaucracy is still important to grasp the complexity of what Bently and Sherman once defined as ‘the Kafkaesque offices of the patent system’.⁶ By looking at its constitutive procedures, routines and practices, the book raises new questions about the logic, if any, of patent administration (63). Perhaps the most interesting part of the chapter is the one in which Bottomley distinguishes between sectors where secrecy offered an effective means of protection in order to explain the low propensity to patent in the pre-reform era (65). The reference to openness and secrecy, and their relationship to patent fees, is continued by a remarkable overview of the role of patent agents. Bottomley summarises their role in the following manner. Patent agents assisted inventors petitioning for a patent (66); helping them in acquiring protection abroad (69); aided them to secure funding (70) and constructed and circulated knowledge about patents (71–72).

Chapter 3 examines what Bottomley characterises as ‘Biagioli’s intuition’ (95, 103),⁷ that the specification requirement signified the transition towards a modern patent, ‘distinct from an early modern privilege’ (103). Although the book tries to review this perception by locating it in a neat temporal framework, it is here that it appears more speculative (98). The analogical references to land and to the nature of literary property (97) are interesting, but not as good as cases in patent law that could have discussed ‘the nature of the property invested in the patentee in the same detail as *Millar* or *Donaldson*’ (98).

The focus on case law as a way to develop an argument also continues in Chapter 4, particularly in a beautiful account of patent cases in equity and at common law (112–26). This view on the courts is crucial – according to Bottomley – to observe the shift in which patents ‘began to be adjudicated in terms more akin to the modern intellectual property’ (142). Chapter 5 focuses on the substantive development of patent law. Although the emphasis on case law is again obvious and to the point, one starts wondering precisely about this point, that is, whether the function of the legal system in the pre-reform era was somehow characterised the other way around, by the avoidance of law cases.

In fact, the re-examination of the patent system may lead to a problem that seems to haunt the first part, the meaning implied in the use of the term ‘system’ (20–27, 142, 170–74). This question is legitimate because the word ‘system’ has a very particular standing in the context of law and legal history that is probably different from the way economic historians tend to use it.⁸ A cursory glance at the historiography of

⁶ Brad Sherman and Lionel Bently, *The Making of Modern Intellectual Property Law: The British Experience, 1760–1911* (Cambridge University Press 1999) 71.

⁷ M Biagioli, ‘Patent Republic: Representing Inventions: Constructing Rights and Authors’ (2006) 73 *Social Research* 1129.

⁸ See, for instance, N Luhmann, ‘Operational Closure and Structural Coupling: The Differentiation of the Legal System’ (1992) 13 *Cardozo Law Review* 1419.

patent law shows how economists or economic historians are often more attracted to the term than legal historians.⁹ When Bottomley says 'the experience of patentees in equity demonstrates that the pre-reform British patent system often defies any straightforward generalisation' (142) or when he suggests that 'the argument that the British law courts failed to generate a substantial and coherent body of law before 1830 is no longer tenable' (168), it seems that some of the answers to the questions asked depend on how the term is understood. Not surprisingly, quotation marks appear to refer to it in certain passages (52).

Although it is not clear, at least to me, what specific meaning Bottomley attaches to the term,¹⁰ it is, however, interesting to see how some of the historical trends Bottomley masterfully analyses were fundamental in giving a systemised nature to patent law. Ironically, the rise of professional networks, the stabilisation of certain bureaucratic requirements and the circulation of knowledge facilitated the emergence of modern British patent law. Perhaps much of its identity as a 'system' was established by its lawyers and historians *ex post facto*.¹¹

The second part of the book is equally fascinating. It is an attempt to give new insights to the relationship between the patent system and technological change and is beautifully written. Bottomley follows a similar methodology, reviewing the previous historiography (207–09) and offering new interpretations to a past that seems particularly elusive. Perhaps the most admirable feature of the book is how it overcomes obstacles on historical sources that have not survived or tools that never existed. For instance, Bottomley regrets that 'no register of patent assignments or licences was maintained before 1852' (220). The substitute (court records) – as he suggests – is only a way to estimate, infer and speculate about 'the working history of a patent' (220). It is a delight to see how the book, instead of leaving the scrutiny unfinished because of the limitations imposed by historical sources, switches the basic unit of analysis, from quantitative to qualitative evidence to explore new ways of interpreting the past (186, 219, 278).

Chapter 8 looks at two inventors, Thomas Newcomen (1664–1729) and James Watt (1736–1819) and recounts their histories in meticulous detail. Christine MacLeod and Harold Irvin Dutton had already pointed out the need to study their 'letters and business

⁹ F Machlup and E Penrose, 'The Patent Controversy in the Nineteenth Century' (1950) 10 *Journal of Economic History* 1; Fritz Machlup, *An Economic Review of the Patent System* (Study No. 15 of Commission on Judiciary, Sub comm. on Patents, Trademarks, and Copyrights, US Senate, 85h Congress, second session. Washington, DC, 1958); MacLeod (n 1); E Kitch, 'The Nature and Function of the Patent System' (1977) 20 *Journal of Law and Economics* 265; Dutton (n 1); Edith Tilton Penrose, *The Economics of the International Patent System* (Johns Hopkins Press 1951); CT Taylor and ZA Silberston, *The Economic Impact of the Patent System: A Study of the British Experience* (Cambridge University Press 1973).

¹⁰ Although the term 'structure' is used in the book (141), it seems that Bottomley defines 'system' by looking at the territorial jurisdiction as the defining factor of the legal system (9–10).

¹¹ In this sense, it is remarkable that Bottomley does not engage with Brad Sherman and Alain Pottage's work on the history of patent law (*Figures of Invention*, Oxford University Press 2010). Although Pottage and Sherman's recent contribution focuses on the history of patent law in the United States, their study can be read as a complement to and elaboration of Biagioli's essay (n 7) that Bottomley also considers in his book.

records',¹² particularly those concerning Watt, defined by MacLeod as the 'inventor of the Industrial Revolution'.¹³ However, Bottomley uses these records in an attempt to map out networks, partnerships and strategies (263). He emphasises that these narratives are '*illustrative* of the benefits that could accrue to inventors from the market in patent rights at the outset of the Industrial Revolution' (263). Although the reference is carefully given in italics, one still wonders how the argument could work without presuming a grand narrative or how specifically networks made up a system.

The last chapter of the second part continues to offer the reader opportunities for thought. It does so by exploring 'the efforts of patentees and their co-promoters to secure capital by forming joint-stock companies between 1845 and 1852' (269). There are many brilliant insights in this last part as well, too many to mention in a review. By far the most remarkable aspect is how it carefully refines, works through and meticulously challenges some assumptions in the history of British patent law. In that sense, Bottomley's book is many things at once: a re-examination, a space for speculation and an attempt to produce new histories. Above all, it is a great book, one of those scholarly works likely to become a standard in the field of intellectual property history.

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¹² See MacLeod (n 2) 3 and Dutton (n 1) 7.

¹³ MacLeod (n 1) 125.